

Plaintiff makes a scant argument that “[i]t is procedurally unconscionable to force a patient who was transferred to a facility to sign an Arbitration Agreement as a condition of residency when care had already been rendered beforehand.” (Opp., 4:16-17.) Plaintiff offers no authority to support this position, and again, Plaintiff fails to support this position with any evidence. Further, it does not appear that Plaintiff was “forced” to sign the agreement. The agreement itself makes it clear that “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility. [...] [T]his document is not part of the admission agreement.” (Blair Decl., Exh. A.) The agreement additionally provides that it may be “rescinded by written notice within thirty (30) days of signature.” (*Ibid.*) These factors do not lend themselves to a finding of procedural unconscionability.

Plaintiff's arguments for substantive unconscionability are that Plaintiff was offered no opportunity for legal representation to review the contract, Plaintiff was not afforded any time to review the agreement prior to the care received or his transfer to the facility, and the agreement seeks to contract away the rights mandated by public policy (see *Harris* discussion above). Again, Plaintiff provides no evidence in support of any of these claims, as the only declaration of Plaintiff's counsel is mere hearsay. Aside from no proof that Plaintiff was not afforded the opportunity to review the agreement at the time it was signed, the 30-day "grace period" allowing for rescission of the agreement belies the position that Plaintiff had no opportunity to either review the agreement or have legal counsel review it. Thus, the Plaintiff's unconscionability arguments fail.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-11-26
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Mundo, et al. v. Lion Farms LLC, et al.***
Superior Court Case No. 25CECG00799

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant Ruben Ojeda Chino to Strike Portions of the
Operative Complaint

Tentative Ruling:

To grant the motion to strike the punitive damages as to the wrongful death heirs only, without leave to amend. To deny the motion to strike, without prejudice, as to the remaining relief sought. (Code Civ. Proc., § 436.)

Explanation:

A motion to strike can be used to cut out any irrelevant, false or improper matters or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 436.) A motion to strike is the proper procedure to challenge an improper request for relief, or improper remedy, within a complaint. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-167.)

Defendant Ruben Ojeda Chino (hereinafter, "defendant") moves to strike the cause of action for negligence and the prayer for punitive damages in the operative complaint, the Fourth Amended Complaint ("4AC").²

First Cause of Action – Negligence

Defendant argues that the 4AC fails to comply with California Rules of Court Rule 2.112, because it does not distinguish which causes of action are asserted by which plaintiffs. Particularly, defendant takes issue with the fact that all causes of action in the 4AC are labelled as wrongful death causes of action, despite the fact that plaintiff Benito Perez Mundo is not deceased.

"[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. [Citation.] A motion for judgment on pleadings is made on the same grounds and decided on the same basis as a general demurrer; judgment on the pleadings will be granted if the complaint on its face fails to state a cause of action. [Citation.]" (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) Accordingly, a motion to strike on grounds for general demurrer may be treated by the court as a motion for judgment on the pleadings. In the

² The court notes that this motion was filed prior to the filing of the 4AC, and that the parties have stipulated to deem the motion as filed against the 4AC.

interest of judicial economy, instead of denying the motion to strike the first cause of action outright, the court will treat this portion of the motion as a judgment on the pleadings.

Where the complaint contains sufficient facts to apprise defendant of the issues, the failure to label each cause of action is not ground for attacking the pleading. (*Williams v. Beechnut Nutrition Corp.* 185 Cal.App.3d 135, 139 ["Although inconvenient, annoying and inconsiderate, the lack of labels . . . does not substantially impair [defendant's] ability to understand the complaint"; see also *Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908 ["Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief"].)

Given the specificity of the facts alleged in the 4AC, the lack of a cause of action specifically labelled as "non-wrongful death" negligence asserted by plaintiff Mundo is nonconsequential. Therefore, the motion as to the first cause of action is denied.

Punitive Damages

Defendant contends that heirs are not entitled to punitive damages in a wrongful death action as a matter of law. Defendant further argues that plaintiff Mundo has not pled sufficient allegations to support a prayer for punitive damages, and the third party motorist's intervening negligence breaks the chain of causation to support punitive damages.

- Wrongful Death Heirs

Plaintiffs concede that punitive damages are prohibited in wrongful death actions, and ask the court to strike the prayer for punitive damages as to the wrongful defendants only. Accordingly, the court intends to grant the motion to strike the punitive damages as to the wrongful death heirs only.

- Allegations in Support of Punitive Damage Claim

With respect to punitive damage allegations, mere legal conclusions of oppression, fraud or malice are insufficient (and hence improper) and therefore may be stricken. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29-30.)

To support punitive damages, the complaint must allege ultimate facts of the defendant's oppression, fraud, or malice. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Evidentiary facts are not required. "[A]bsent an intent to injure the plaintiff, 'malice' requires more than a willful and conscious disregard of the plaintiff's interests. The additional component of 'despicable conduct' must be found." (*College Hosp. Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) "Despicable" conduct is defined as "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Ibid.*) Such conduct has been described as "having the character of outrage frequently associated with crime." (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287; *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912.)

A claim may be supported by showing “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) To establish conscious disregard, “the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 908, italics omitted.)

Here, plaintiffs allege that the collision giving rise to the instant action occurred on February 23, 2024, when plaintiff Mundo and decedents were hit by a third-party motorist on their way to work. (4AC, ¶¶ 26, 27.) It is alleged that plaintiff Mundo and decedents were driving from a labor camp in Kerman, CA, owned by defendant Lion Farms LLC, which is approximately 40 miles away from their place of work in Madera, CA. (*Ibid.*) It is further alleged that defendant purchased vans for the purpose of transporting workers to the place of work and charged the workers a daily fee of approximately \$13 for this transportation service. (4AC, ¶¶ 20, 24.) Plaintiffs allege that on February 23, 2024, defendant instructed decedent Victor Cirilo Hernandez to drive himself, plaintiff Mundo, and the other decedents to work, with the knowledge that Mr. Hernandez did not have a valid driver’s license and was untrained and unqualified to operate the vehicle. (4AC, ¶ 26.)

There is a commonly understood risk which attends every motor vehicle driver who is unlicensed or otherwise untrained or unqualified to operate a vehicle. The lethal consequence of directing an unlicensed individual to drive a vehicle capable of great force and speed, as is alleged, is widely known and indisputable. Moreover, plaintiffs have sufficiently alleged that defendant’s conduct was intentional and that he had actual knowledge of the probable dangerous consequences. Plaintiffs allege: that defendant had “direct knowledge of the dangerous . . . circumstances of the transportation . . . arranged . . . in his supervisory capacity and role in procuring and transporting labor to work for defendant Lion Farms.” (4AC, ¶¶ 38.) “Defendant Chino was aware that he was providing dangerous transportation to employees, and he knew the risks associated with the unlawful transportation given his intimate knowledge of the unqualified and unlicensed nature of the drivers. . .” (4AC, ¶ 52.) This alleged knowledge is further supported by the allegations that defendant intentionally registered the vehicles under false names in an effort to avoid liability. (4AC, ¶ 21.)

While plaintiffs will ultimately need to prove their allegations of malice by clear and convincing evidence of despicable conduct, at the pleading stage it is sufficient to allege that defendant acted with conscious disregard for the rights and safety of others by willfully instructing an unlicensed driver to operate a vehicle with multiple passengers for a distance of approximately 40 miles with the knowledge that such conduct posed an unreasonable danger.

- Causation

Next, defendant argues that plaintiff Mundo cannot state a claim for punitive damages, because defendant’s alleged conduct did not cause plaintiffs’ injuries. Firstly, the issue of causation is generally not appropriate at the pleading stage. Nonetheless, defendant’s argument that his alleged conduct had no effect on the outcome of this accident, at least as it is alleged, is patently false. Defendant is correct in his assertion

